

Defendants fail to cite to authority providing that the Court may resolve disputed issues *upon noticed motion*. They cite only to caselaw providing that the Court may do so as to undisputed issues. (See Support Memo at 2:18-3:2.)

Any suggestion that the Court is authorized to resolve disputed issues by noticed motion is undermined by section 872.710, subdivision (a), which appears to provide that the Court's determination of whether the plaintiff has the right to partition is to be made "[a]t the trial." (See also § 872.610 ["[t]he interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action"].)

The Court directs the parties to meet and confer prior to the hearing to determine which of the following pre-partition issues, if any, can be resolved by stipulation: interests of the parties (§ 872.610), state of title (§ 872.620), interests of lienholders (§ 872.630), interests of unknown parties (§ 872.640) and, plaintiff's right to partition (§ 872.710). In discussing these issues, the parties should bear in mind that, "[i]f the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (§ 872.720, subd. (a).)

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Glenn Rieder, LLC v. Rudolph and Sletten Inc. et al

25CV002726

DEFENDANT RUDOLPH & SLETTEN, INC.'S MOTION TO STAY

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Rudolph & Sletten, Inc. ("R&S") moves, pursuant to Code of Civil Procedure section 128,³ to stay this action on the grounds that the action is premature. Specifically, "[t]he instant action involves a small piece of a much larger Project between R&S and the State of California as Owner of a large public works project to construct a Veterans Home and Skilled Nursing and Memory Care Facility in Yountville. The Project is still being completed and more importantly the Subcontract at issue requires R&S to submit the claims herein through the Owner's mandatory claims resolution procedures before the subcontractor can pursue actions against R&S. The Owner review process has not been completed and is ongoing. Thus, this action would constitute a waste of judicial and party resources and which also risk inconsistent judgments on some or all of Plaintiffs claims." (Notice of Motion, 2:7-14.)

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Plaintiff opposes the Motion, contending “R&S asks the Court to halt this action without identifying a parallel adjudicative proceeding, a reasonably certain completion date, or any basis to conclude that the Owner’s process will dispose of the claims before this Court. Judicial economy is not served by indefinitely staying ripe contractual and statutory claims based on speculation that an external process may someday be resolved.” (Opp., 2:8-12.) “California law does not permit a prime contractor to postpone a subcontractor’s right to payment indefinitely while the prime contractor pursues recovery from the owner.” (Opposition, 1:4-9.) Plaintiff argues that this exact request was made, and denied, in *Crosno Construction, Inc. v. Travelers Casualty & Surety Co. of America* (2020) 47 Cal.App.5th 940. (*Id.*, 1:10-25.)

Section 128 contains a list of powers that every court inherently maintains. R&S fails to cite to the subdivision upon which its motion is brought. That said, Plaintiff does not challenge the existence of the Court’s authority to stay proceedings before it. Thus, the Court overlooks this procedural deficiency in the Motion.

The Court does not find *Crosno* particularly analogous, for the reasons explained by R&S in Reply. However, the Court elects not to exercise its discretion to grant a stay in this case. As an initial matter, R&S’s Motion argues—with very little evidentiary support—that Plaintiff’s claims against R&S in this action are “pass through claims” that “arise out of the actions or omissions of the Owner” and therefore subject to a separate manner of resolution between R&S and the owner. (Mem., 3:7-9, 4:19-22, 11-14, Declaration of Paul Kangas (“Kangas Decl.”), ¶ 5.) Plaintiff disputes that assumption in Opposition, arguing “[t]he vast majority of Plaintiff’s claims are direct claims against R&S for breach of contract and breach of implied warranty that do not depend on the Owner’s adjudication of any disputes.” (See Opp., 1:26-2:1; 5:18-19.) In Reply, R&S does not contest Plaintiff’s assertion that the “vast majority” of its claims are direct claims that do not require submission to the Owner, nor does it attempt to distinguish the direct claims from the Owner-related claims. Finally, R&S provides no estimate for when the claims will be resolved by the owner.

For all the foregoing reasons, R&S has failed to show that the interests of efficiency would be promoted by a stay. Thus, the Motion is DENIED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Karl J Porter

24PR000279

FINAL DISTRIBUTION HEARING

APPEARANCE REQUIRED to update the Court on the status of the Creditor’s Claim from the State of California Franchise Tax Board filed May 8, 2026 *after* the Petition for Final Distribution was filed on February 13, 2026.

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